

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-28

WAY INTERGLOBAL NETWORK, LLC

COMPLAINANT,

v.

SHENZHEN UNIFELIX SCM LIMITED

RESPONDENTS.

JOINT STATUS REPORT AND PROPOSED DISCOVERY SCHEDULE

Pursuant to 46 C.F.R. Section 502.141(h), Complainant WAY INTERGLOBAL NETWORK, LLC and Respondent SHENZHEN UNIFELIX SCM LIMITED (each a “Party” and, collectively, the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report and proposed discovery schedule.

The Parties will exchange the initial disclosures required by 46 C.F.R. Section 502.141(b) within seven days of filing of Respondent’s answer. Consistent with Paragraph 18 of the October 26, 2022 Initial Order in this case, the Parties have conferred concerning a stipulation regarding treatment of confidential documents and information exchanged and used in this case. Furthermore, in compliance with 46 C.F.R. Section 502.141(h), the Parties resolved to the fullest extent possible disputes relating to discovery matters and to expedite, limit, or eliminate discovery by use of admissions, stipulations and other techniques.

The Parties propose the following schedule:

EVENT	DEADLINE
Parties may serve initial written discovery requests (responses and/or objections due 30 days after service)	When initial disclosures are served
Parties may begin to notice depositions	When initial disclosures are served
Initial expert report(s), if any	May 1, 2023
Rebuttal expert report(s), if any	May 15, 2023
Non-expert witness list	May 15, 2023
Last date to serve supplemental written discovery requests	May 19, 2023
Depositions to be completed	June 19, 2023
Close of discovery	June 19, 2023
Dispositive motion(s) (responses due 15 days after service; replies due 7 days after service of the response)	August 1, 2023
Motion, including motions in limine (responses due 7 days after service, no replies unless requested by the Commission or presiding officer, or upon a showing of extraordinary circumstances)	October 1, 2023
Exhibit list	October 1, 2023
Deposition designations	October 1, 2023
Opening briefs with proposed findings of fact and appendix	As determined by the Presiding Officer
Response briefs with proposed findings of fact and appendix	As determined by the Presiding Officer
Reply briefs with proposed findings of fact and appendix	As determined by the Presiding Officer

Pursuant to 46 C.F.R. Section 502.64(a) and the Order Denying Motion to Dismiss, the Parties will confer with the Commission's Office of Consumer Affairs and Dispute Resolution Services (CADRS) as to whether this matter may be resolved through mediation.

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Dated: February 2, 2023

MCLEOD BROCK LAW, PLLC

/s/ Lindsey C. Brock III

Lindsey C. Brock III, Esq.
FL Bar No.: 971669
9995 Gate Parkway North, Ste. 400
Jacksonville, Florida 32246
(904) 996-1100 Office Telephone
(904) 996-1120 Facsimile
Primary E-Mail: lindsey@mcleodbrock.com
Secondary E-Mail: jennifer@mcleodbrock.com
Attorneys for Complainant Way Interglobal Network, LLC

ROBERTS & KEHAGIARAS LLP

/s/ Theodore H. Adkinson

Theodore H. Adkinson, Esq.
100 West Broadway, Suite 660
Long Beach, CA 90802
(310) 642-9800
THA@tradeandcargo.com
Attorneys for Respondent Shenzen Unifelix SCM Limited

CERTIFICATE OF SERVICE

I hereby certify that I have this 2nd day of February, 2023, served the foregoing document upon Theodore H. Adkinson, Esq. (THA@tradeandcargo.com) by electronic mail, with a courtesy copy to judges@fmc.gov.

/s/ Lindsey C. Brock III

Lindsey C. Brock III, Esq.
FL Bar No.: 971669